

Staff Report

Community Development

Subdivision review: **Indian Village Addition, Unit 2, final plat**

File no. SUB-19-016

To: Manhattan Urban Area Planning Board

From: Shauna Laauwe, Planner II

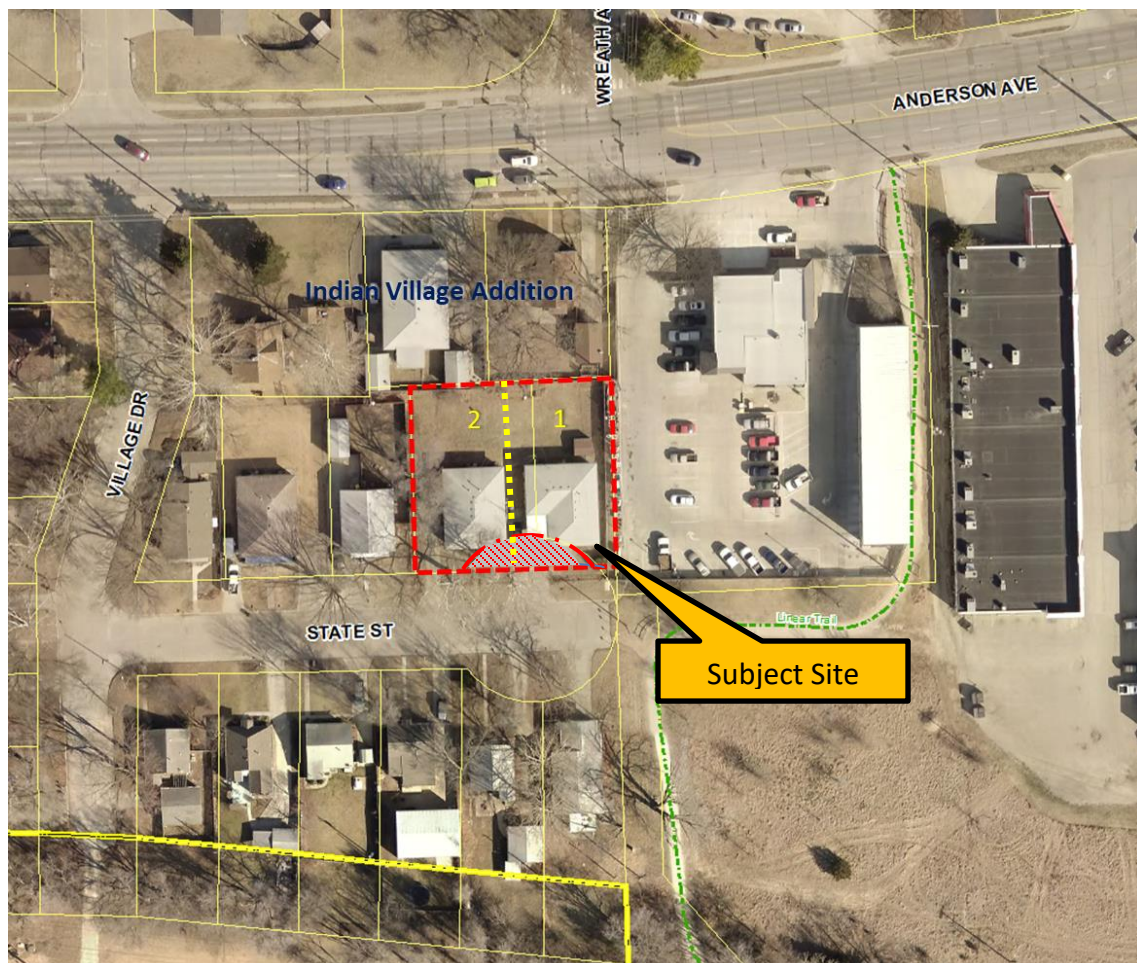
Meeting Date: March 18, 2019

Applicant/Owner: Eileen Wood Trust, The Trust Company, Trustee

Property Location: 3204-3206 State Street, Manhattan, KS 66502

Total Area: 0.33 acres (14,557 sq.ft.)

Zoning: R-1, Single-Family Residential District



BACKGROUND

PROJECT HISTORY

Prior to 1941	Indian Village Addition shown in outliers of the 1941 City of Manhattan zoning map, unknown when originally platted.
1953	Two-unit structure built on current Lot 7 prior to the Revised Plat Indian Village Addition and annexation into the City.
July 20, 1955	Riley County Commissioners and Manhattan City Commission approves the Revised Plat Indian Village Addition.
August 7, 1962	City Commission approves Ordinance No. 2269 annexing the Indian Village Addition- Revised and zoned "A" Single and Two Family Dwelling District.
1963	Single-family home built on Lot 6.
June 3, 1969	City Commission approves Ordinance No. 2650 that adopts a new Zoning Ordinance with redefined zoning districts and regulations. Indian Village Addition is subsequently classified/zoned as R-1, Single-Family Residential District.

PROJECT DESCRIPTION

The Final Plat of Indian Village Addition, Unit Two is a replat of Lots 6, 7, and 8 of Indian Village Addition. The lots have had the same ownership since 1953, with the existing structures built without regard to lot lines or the platted circular street right-of-way for State Street designated on the Indian Village Addition. The owner is recently deceased and the family is now in the process of selling the properties. The Final Plat shifts the boundary lot line between Lots 6 and 7 and the east lot line of Lot 8 in order to bring the structures within the replatted Lots 1 and 2 of the Indian Village Addition, Unit Two. The Final Plat will also vacate the north arc portion of the State Street right-of-way and establish a 6.50 feet wide by 46.00 feet long travel easement on Lot 1 to allow Lot 2 to access the east side of the property using the existing driveway. All utility companies have agreed to the proposed vacation area of the State Street right-of-way.

The Final Plat will bring the existing structures to completely within designated lots, however both structures will be required to seek exceptions from the Board of Zoning Appeals to allow a reduction in the minimum required eight (8) foot side yard setbacks and the minimum required twenty-five (25) foot front yard setback.

CONSIDERATION OF THE FINAL PLAT

The consideration criteria for final plats are found in the Subdivision Regulations, Section 6-403. Review of Final Plat, subsection (A), which states:

The MUAPB shall approve the Final Plat if the Final Plat is in substantial compliance with the Preliminary Plan, as approved, including all requirements and conditions placed upon the Preliminary Plat by the MUAPB; and, the Final Plat complies with all requirements of the Subdivision Regulations as of the date of such final approval.

In this case the original plat and revised plat were approved by Riley County and the Manhattan City Commission before annexation in 1962. Thus, the proposed replat has had the lot layout and subdivision design previously considered and approved, leaving the question of whether the addition of vacated right-of-way to the existing lots would create a violation that disrupts the original subdivision layout. The enlargement of the lots does not affect other lots in the subdivision and the zoning will continue to be R-1, Single-Family Residential District and will have the same character as originally conceived. The abandoning of the cul-de-sac right-of-way (the arc portion), that was never constructed, will not adversely affect traffic from the area and is not detrimental to the original plan.

ALTERNATIVES

The MUAPB has the following alternatives concerning the issue at hand. The Board may:

1. **Approve** the Final Plat of Indian Village Addition, Unit Two, based on conformance with the Manhattan Urban Area Subdivision Regulations.
2. **Deny** the Final Plat of Indian Village Addition, Unit Two, indicating specifically how the Final Plat does not comply with the Manhattan Urban Area Subdivision Regulations.
3. **Table** the Final Plat of Indian Village Addition, Unit Two, to a specific date, indicating the reasons for tabling.

RECOMMENDATION

City Administration recommends **approval** of the Final Plat of Indian Village Addition, Unit Two, based on conformance with the Manhattan Urban Area Subdivision Regulations.

POSSIBLE MOTION

Approve the Final Plat of Indian Village Addition, Unit Two, based on conformance with the Manhattan Urban Area Subdivision Regulations, as recommended in the staff report.

Dated: March 4, 2019

Exhibits

1. Application Packet
2. Final Plat of Indian Village Addition, Unit Two

FINAL PLAT APPLICATION



Community Development Department ~ 1101 Poyntz Ave ~ Manhattan, KS 66503 ~ 785-587-2412

This information must be completed in its entirety before the application will be accepted.

APPLICANT INFORMATION

Applicant Eileen Wood Trust, The Trust Company, Trustee
Primary Contact (if applicant is an entity) Doug Wiley
Address: 800 Poyntz Ave
City: Manhattan State: KS Zip: 66502
Tel: 785-537-7200 Fax: 785-537-2030
Email: dougw@thetrustco.com

MUST BE
SUBMITTED
IN FULL
BY 5:00 P.M. ON:

HEARING DATE:

Relationship to property owner(s) (check most applicable)

☒ Property Owner ☐ Buyer ☐ Consultant ☐ Other (describe) _____

If Applicant is not owner:

Owners Name: _____

Address: _____

City: _____ State: _____ Zip: _____

Tel: _____ Fax: _____

Email: _____

PROPERTY INFORMATION

Property Address (If no street address, then a general street location/description):

3204-3206 State Street, Manhattan, KS 66502

Legal Description: Lot: 7 Subdivision: Indian Village Revised (Or attach description)

Existing Use of Property: Duplex Rental

Current Zoning District: R-1

Proposed Zoning District: R-1

BY SIGNING THIS APPLICATION THE OWNER(S) AND APPLICANT(S) ATTEST THAT ALL INFORMATION AND FACTS PROVIDED ON THIS FORM AND ATTACHMENTS ARE COMPLETE AND ACCURATE AND THAT ANY OMISSION OR INCORRECT FACT OR INFORMATION MAY INVALIDATE ANY NOTICE OR SUBSEQUENT ACTION TAKEN BY THE MANHATTAN URBAN AREA PLANNING BOARD OR CITY COMMISSION. (All applicants and owners shall sign the application. Attach additional name/address/signature/date pages as needed.)

Applicant(s) Signature

Date

Owner(s) Signature

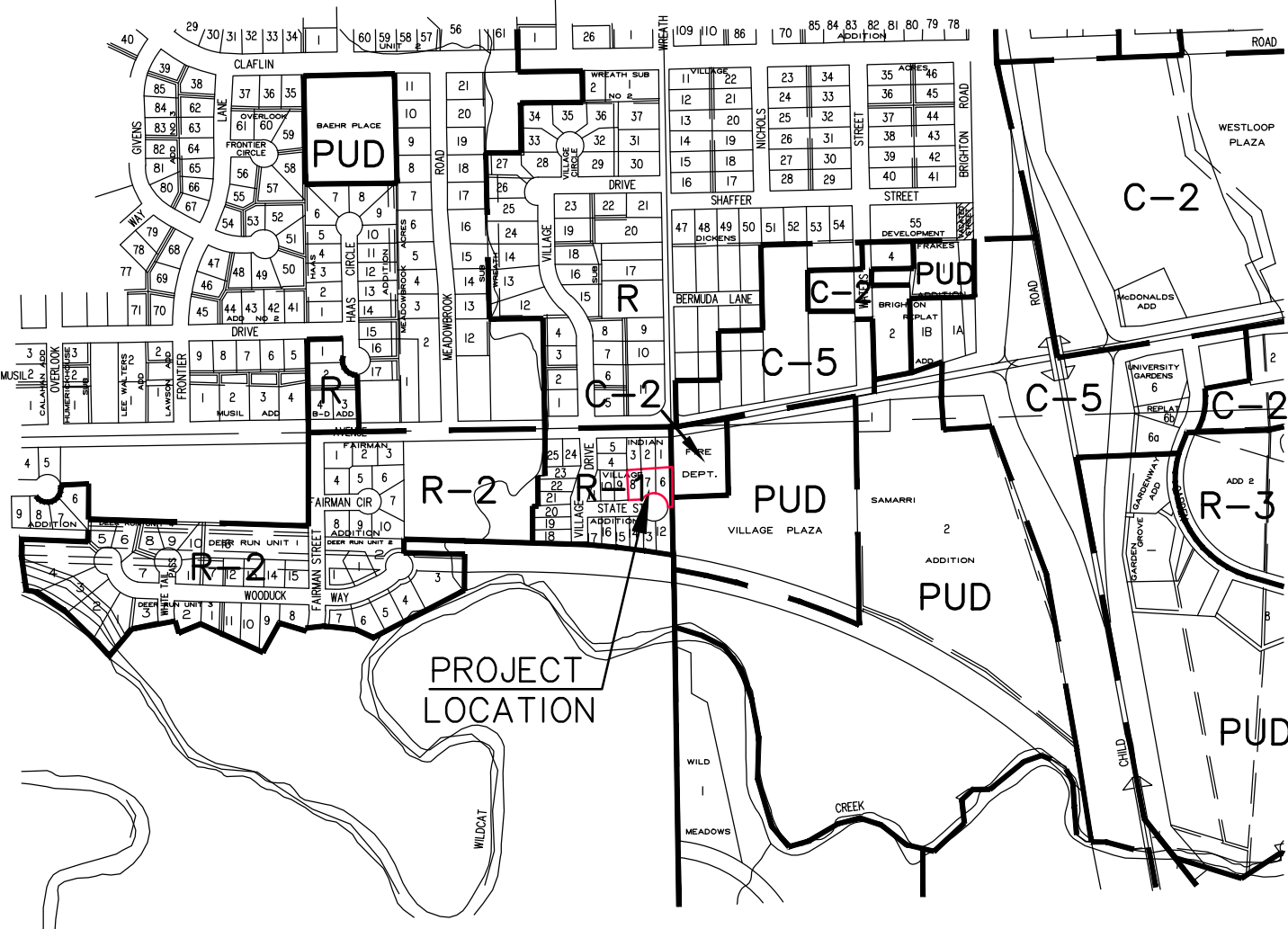
Date

For Office Use Only			
Date submitted:	Project:	Planner:	



It is our policy to provide individuals with disabilities an equal opportunity to participate in, and enjoy the benefits of our services, programs, and activities. In accordance with provisions of the ADA, every attempt will be made to accommodate the needs of persons with disabilities. Please contact the Human Resources Department (587-2440) for assistance.

M:\Survey\Survey Data\181211A-The Trust Company-Lots 6 & 7 Indian Village Adda\CAD Files\181211A-INDIAN VILLAGE FP.dwg, 2/26/2019 2:01:37 PM, DWG To PDF.pc3



SITE MAP

BENCH MARKS:

- B.M. 1 = North Cap Bolt on Fire Hydrant West of the Intersection of Joseph Drive and Miller Parkway.
N. 12441.53, E. 24685.86
Elev. = 1284.08
- B.M. 5 = Cap Bolt at Grease Zerk on Fire Hydrant on the North side of Miller Parkway, 260' +/- West of Gated Entrance.
N. 12962.09, E. 23556.65
Elev. = 1264.62

OWNER'S CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This is to certify that the undersigned are the owners of record of the land hereon described on this plat, and that the undersigned have caused the same to be surveyed and subdivided as herein set forth.

The undersigned, as such owners, do hereby state that all street right-of-ways as shown on this plat are hereby dedicated to the public. An easement and license to locate, construct, operate, inspect, replace and maintain, or authorize the location, construction, operation, inspection, replacement and maintenance of poles, wires, conduits, water, gas, and sewer pipes; or authorized drainage channels or structures; hard and impervious surfaces; or, other structures necessary to carry out the function of the easement, upon the area marked for easements on this plat, is also hereby dedicated to the public. When, and if, used on this plat, the term "utility" shall include, by way of example, but not limited to, sewer, water, gas, electricity, cable t.v. and telephone. When, and if, used on this plat, the term "travel" shall include all forms of travel, by whatever means, unless the term is limited by other words or phrases, such as, "pedestrian travel", etc. The undersigned acknowledge that pursuant to K.S.A. 12-406, the dedication of right-of-ways and easements to the public constitutes a conveyance thereof to the City of Manhattan, Kansas, in trust, for the uses named, expressed or intended.

Given under my hand at Manhattan, Kansas, this ____ day of _____, 2019

Eileen Wood, Trust
Dated March 30, 2009

The Trust Company/ Douglass R. Wiley, Trustee

NOTARY CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

BE IT REMEMBERED, that on this ____ day of _____, 2019, before me, the undersigned, a notary public in and for the County and State aforesaid, came Douglass R. Wiley for the Trust Company, Trustee of the Eileen Wood Trust, dated March 30, 2009, personally known to me to be the same persons who executed the foregoing Owner's Certificate and Quitclaim Certificate, and duly acknowledged their execution of the same.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my notarial seal on the day and year last above written.
SEAL

Notary Public

My appointment expires: _____

CERTIFICATE OF THE REGISTER OF DEEDS

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This instrument was filed for record on the ____ day of _____, A.D. 20____ at ____ O'clock ____ M., and duly recorded in Book ____ at Page ____

Register of Deeds

By _____ Deputy

MANHATTAN URBAN AREA
PLANNING BOARD CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

Approved this ____ day of _____, 2019.
Manhattan Urban Area Planning Board
Manhattan, Kansas

Chairperson

Attest:

CERTIFICATE OF THE CITY COMMISSION

STATE OF KANSAS)
COUNTY OF RILEY) SS:

The dedicated public rights-of-way and easements, as shown on this plat, are hereby accepted by the City Commission of the City of Manhattan, Kansas, as of this ____ day of _____, 2019.

The only easements and rights of way, dedicated to the public, are as shown on this plat. Any such easements and rights of way that were previously dedicated to the public, over and across the area within the boundaries of this plat, whether such dedication was by a previous plat or other document or instrument, are hereby vacated and removed by the City Commission's acceptance of the easements and rights of way shown hereon.

Governing Body of the City of Manhattan, Kansas.

Gary S. Fees, MMC, City Clerk

Mike Dodson, Mayor

OWNER/DEVELOPER:
Eileen Wood Trust
c/o The Trust Company
800 Poyntz Avenue
Manhattan, KS 66502
(785) 537-7200

ENGINEER:
Schwab-Eaton P.A.
1125 Garden Way
Manhattan, KS 66502
(785) 539-4687

EXISTING ZONING: "R-1"
"R-1" All Lots

EXISTING LAND USE:
Single Family Residential
Duplex Residential

ZONING:

"R-1" Single Family Residential

RILEY COUNTY PLAT REVIEW
SURVEYORS SIGNATURE BLOCK

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This Plat has been reviewed and approved for filing pursuant to and in compliance with K.S.A. 58-2005 and with the requirements of Riley County Resolution No. 082913-58. No other warranties are extended or implied.

Approved: _____ Date: _____
License: _____

SURVEYOR'S CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

I, the undersigned do hereby certify that I am a Registered Land Surveyor in the State of Kansas with experience and proficiency in land surveying, that the heretofore described property was surveyed and subdivided by me, or under my supervision, that all subdivision regulations of the City of Manhattan, Kansas, have been complied with in the preparation of this plat, and that all the monuments shown herein actually exist and their positions are correctly shown to the best of my knowledge and belief.

Given under my hand and seal at Manhattan, Kansas this ____ day of _____, A.D. 20____.

SCHWAB-EATON

Harlan G. Ross, P.S. 1290

ANDERSON AVENUE (U.S HIGHWAY 24)

N.E. Cor. N.W. 1/4
Sec. 14-10-7
Found Cotton Picker
Origin: Unknown

Project No. 181211A
Client: Eileen Wood Trust
3202 and 3204 State St.
Manhattan, KS 66503

LEGAL DESCRIPTION

Book 836 Page 5799, in the Office of the Register of Deeds, Riley County, Kansas:
Lots Six (6) in Indian Village Addition, to the City of Manhattan, Riley County, Kansas;
AND

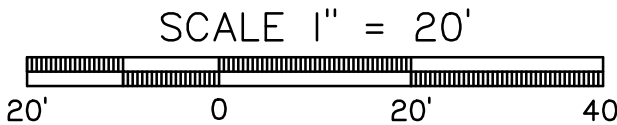
East Twenty-Five Feet (E25') of Lot Eight (8) and All of Lot Seven (7) in Indian Village Addition, to the City of Manhattan, Riley County, Kansas. Subject to easements and restrictions of record.

ALSO KNOWN AS

Lot Six (6), in Revised Plat Indian Village Addition, to the City of Manhattan, Riley County, Kansas;
AND

All of Lots Seven (7) and the East Twenty-five feet (E 25') of Lot Eight (8), in Revised Plat Indian Village Addition, to the City of Manhattan, Riley County, Kansas. Said tract contains 0.33 Acres, more or less.

ALL BEARINGS AND DISTANCES SHOWN ON THIS PLAT ARE MEASURED, UNLESS OTHERWISE NOTED



LEGEND

- SECTION CORNER FOUND AS SHOWN
- FOUND 1/2" REBAR W/CLS 59 CAP UNLESS OTHERWISE NOTED
- 1/2"x 24" BAR W/CLS 59 CAP SET THIS SURVEY
- CALCULATED POINT (NOT SET)
- CALCULATED DISTANCE
- MEASURED DISTANCE
- PLAT DISTANCE
- PROPERTY LINE
- ROOF OVERHANG
- FLOOD ZONE AE BOUNDARY
- FENCE WELDED WIRE
- ROAD CENTERLINE
- EASEMENT LINE (See Note 9)
- FENCE WOOD PRIVACY
- PORTION OF RIGHT-OF-WAY TO BE VACATED WITH THIS PLAT

GENERAL NOTES

- Bearings shown for this survey are based on a previous survey, for the purpose of this survey, North is based on the West line of Lot 6 which is assumed to bear S 0°03'02" E.
- This survey was performed without the benefit of a proper title report. Conditions may exist that would be disclosed in a proper title report.
- No gaps or overlaps were discovered during this survey.
- Buildings exist on this property as shown.
- Easements, setbacks, restrictions or encumbrances of record if any, affecting the title to this tract are shown.
- There is a possible encroachment of the existing structure into the building setback as shown hereon.
- Note: Encroachment is a legal term/definition, this survey makes no determination, warranty, and/or opinion as to whether or not these observations constitute an actual encroachment.
- Portions of the tracts surveyed heron exist within Flood Zone AE, areas determined to be within the 1% annual chance flood boundary according to FEMA FIRM 2016IC0353G, revised March 16, 2015. Maps subject to change, for more information, visit www.floodsmart.gov.
- Bearings and Distances shown hereon are measured unless noted otherwise.
- Existing easements are to remain in place, only the existing property line is to be vacated with the filing of this Plat.
- A 6.50 feet wide by 46.00 feet long Travel Easement to be established on Lot 1 to allow Lot 2 to access the East side of the property using the existing drive.
- The Building Setback Line for Lots 1 and 2 shall be reduced as shown to allow existing structures to remain as they are currently constructed.

A REPLAT OF LOTS 6, 7 AND 8, INDIAN VILLAGE ADDITION
FINAL PLAT

INDIAN VILLAGE
ADDITION
UNIT TWO

AN ADDITION TO THE CITY OF
MANHATTAN, RILEY COUNTY, KANSAS

PREPARED BY



CONSULTING ENGINEERS - LAND SURVEYORS - LANDSCAPE ARCHITECTS
1125 GARDEN WAY MANHATTAN, KANSAS PH 785-539-4687

FEBRUARY 2019